

What spacing is in Texas

Texas regulates spacing to prevent waste and protect correlative rights, but it does it differently than Oklahoma. Rather than laying out pre-set units, the Railroad Commission of Texas controls where wells sit through statewide rules and field rules, and assigns each well a proration unit. Combining separately owned tracts is left mostly to pooling under the lease; see the Texas Pooling reference.

Statewide Rule 37 and Rule 38

Statewide Rule 37 ([16 TAC § 3.37](#)) is the spacing rule: it sets the minimum distance between a well and the lease or property lines and between wells. Statewide Rule 38 ([16 TAC § 3.38](#)) is the density rule: it sets how much acreage a well must have around it. Together they keep wells from crowding a lease line or each other.

Texas spacing	Detail
Agency	Railroad Commission of Texas
Spacing	Statewide Rule 37 (16 TAC § 3.37), distance from lease lines and other wells
Density	Statewide Rule 38 (16 TAC § 3.38), acreage per well
Field rules	The Commission may adopt field-specific spacing and density that override the statewide rules
Proration unit	The acreage assigned to a well for its allowable
Combining tracts	Left to pooling under the lease; see the Texas Pooling reference

Field rules and proration units

For a given field the Commission can adopt field rules that change the statewide distances and densities to fit the reservoir. Each well is then assigned a proration unit, the acreage credited to it for allowable purposes. The field rules and the proration unit, not a statewide unit, tell you how much acreage a well holds and how it is allowed to produce.

Exceptions

An operator who cannot meet the spacing distance or the density rule applies for a Rule 37 or Rule 38 exception. The Commission hears it, and neighbors within a set distance get notice and can protest. A common ground for a Rule 37 exception is to prevent waste or to protect the operator's right to recover its fair share of the reservoir.

Notes for title work

Topic	Note
Check the field rules	Find the field rules for the reservoir. They set the spacing and density that actually apply, and they can differ a lot from the statewide defaults.
Read the proration unit	The proration unit, not a spacing order, tells you the acreage assigned to the well. Confirm which tracts are in it.
Spacing does not hold acreage	A spacing or density rule places the well; it does not combine tracts or hold a lease. That is the lease pooling clause's job, so read it. See the Texas Pooling reference.
Exceptions in the file	Look for any Rule 37 or Rule 38 exception in the well's Commission file; it can affect where the well sits relative to your lines.

This reference is prepared for use by landmen and title professionals as a working field tool. It is not legal advice and does not substitute for the advice of qualified oil and gas counsel. Statutes, rules, and Commission practice change and turn on the facts of each unit and chain of title. Confirm any conclusion against the current statutes, rules, and orders, and refer complex or disputed matters to a licensed attorney in the state involved. Citations are to 16 TAC §§ 3.37 and 3.38 and the applicable field rules.